

Agreement”) and a Stipulation for Entry of Judgment (the “Stipulated Judgment”) in the event of default or breach. Defendants thereafter breached the Settlement Agreement. Itria filed a complaint on June 4, 2024. After the filing of that complaint, Defendants committed to abide by the settlement terms, so Plaintiff dismissed the complaint without prejudice. But thereafter Defendants breached the Settlement Agreement again, and Itria commenced the present action—with a new complaint—on December 9, 2024.

The Court granted Itria’s motion for an order entering the parties Stipulated Judgment on August 12, 2025, and entered the Stipulated Judgment on August 22, 2025, in the amount of \$204,280.76. (the “Judgment”). Notice of entry of the Judgment was served on August 22, 2025.

On October 7, 2025, Plaintiff” filed this Motion for attorney's fees & costs pursuant to Cal. Rules of Court (CRC) Rule No. 3.1702. Plaintiff’s Motion was supported by Notice, Memorandum of Points and Authorities and Declaration of Counsel Jason Takenouchi. The Motion was served on October 9, 2025. In this Motion, Plaintiff seeks to recover the attorneys’ fees and costs expended in this action. To date Plaintiff has incurred \$31,642.50 in attorneys’ fees and \$3,364.76 in costs.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” Nine court days before the hearing is January 14, 2026. No timely opposition was filed. Defendants filed an untimely opposition on January 20, 2026, which is six days late. No declaration accompanies Defendants’ late-filed opposition declaring facts that support good cause for Counsel’s failure to file the opposition timely. Accordingly, the Court does not consider the late-filed opposition.

Analyses

Counsel’s late opposition contains no explanation as to why he simply failed to comply with the deadline to file an opposition to Plaintiff’s motion for attorney's fees & costs. Unlike attorneys recently admitted to practice, Defendant’s Counsel cannot attribute inexperience for failing to file a timely opposition. Counsel has been in practice for over 50 years

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party “provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them.”

Ruling

Plaintiff’s Motion for attorney's fees & costs is granted the Court will execute the proposed order lodged by Plaintiffs on October 7, 2026. Defendants shall pay \$31,642.50 in attorneys’ fees and \$3,364.76 in costs no later than thirty (30) days from the date of this order.

12. 9:00 AM CASE NUMBER: C25-00559
CASE NAME: MARC TRAPANI VS. ANASTACIO CERO
***HEARING ON MOTION IN RE: ENTER JUDGMENT PER CCP 664.6**
FILED BY: TRAPANI, MARC
TENTATIVE RULING:

Summary

Plaintiff Marc Trapani's Motion for Judgment against Defendants Anastacio Cero, et. al., is **denied** without prejudice for lack of jurisdiction. Although Plaintiff's counsel represents that Defendants have been served and have entered into a settlement agreement resolving all claims, which has been allegedly breached, the Register of Actions does not contain proof of service which evidences that any of the Defendants have been served with the initial summons and complaint. As set forth below, the Court lacks personal jurisdiction over Defendants and cannot enter a judgment against them.

Analyses

Defendants to a litigation have a constitutional due process right to notice of the proceeding and an opportunity to be heard. That right was not observed here. While they entered into a settlement agreement, the Court's records do not contain proof of service of summons and complaint on the named Defendants. Thus, the Court does not have jurisdiction over the Defendants.

Without jurisdiction, this Court cannot approve a judgment pursuant to a settlement agreement that binds the parties in this case. Indeed, "A judgment is void if the defendant was never served with the summons and complaint." *Giorgio v. Synergy Management Group, LLC* (2014) 231 Cal.App.4th 241, 246, fn. 6.) The Court does not acquire personal jurisdiction over a defendant until "the time summons is served on him" as provided by statute. (Code Civ. Proc. § 410.50(a).)

Ruling

Plaintiff Marc Trapani's Motion for Judgment against Defendants pursuant to Cal. Code of Civ. Proc. § 664.6 is **denied without prejudice**.

13. 9:00 AM CASE NUMBER: C25-01357
CASE NAME: CITY OF CONCORD VS. COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: RYAN T. DOUGHERTY
FILED BY: COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
TENTATIVE RULING:

Summary

Defendant Comcast Cable Communications Management, LLC and Comcast of California IX, Inc. (Collectively "Defendants" or "Comcast") filed a Notice of Hearing and Motion for Ryan T. Dougherty to be admitted as Counsel *Pro Hac Vice*. The Motion is **granted**. No appearance is required at the hearing on January 28, 2026.

Background